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IN THE DISTRICT COURT OF APPEALS
FOR THE FIRST DISTRICT
STATE OF FLORIDA

Tara Walker,
Appellant,

DCA #: 1D26-2355
Claim OJCC: 25-010357SMS
Date Accident: 1/22/2024

vs.
Miami Dade County/Miami
Dade County Risk Management,

Appellees.
_____/

APPEAL FROM DIVISION OF ADMINISTRATIVE HEARINGS,
OFFICE OF THE JUDGE OF COMPENSATION CLAIMS
MIAMI DISTRICT
OJCC#: 25-010357SMS

INITIAL BRIEF OF APPELLANT

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PRELIMINARY STATEMENT AND INDEX OF ABBREVIATIONS

This is a workers' compensation appeal of a Final Order of JCC Sylvia Medina-Shore which denied authorization and provision of medical treatment for the injury of cervical disc disorder with radiculopathy under the 120 day rule, and also denied the claim for attorney's fees and costs at the expense of the employer/carrier.

In this Brief, Appellant will use the following abbreviations:

Appellant will be referred to as Ms. Walker or "Claimant" and claimants in general will be referred to using lower case.

Appellees will also be referred to as Employer/Carrier or "E/C" or the "County."

Lower Court will also be referred the "JCC."

Section 440.20(4) will be referred to as the 120 day rule.

Major Contributing Cause will be referred to as MCC.

The electronic record will be cited as follows: (Record. page number) e.g.- (R. 10).

The Trial Transcript record will be cited as follows: (Record transcript. page number) e.g.- (RT. 10).

All emphasis in bold or italics has been supplied by counsel unless otherwise noted.

STATEMENT OF THE CASE

Appellant accepts the facts found by the JCC as correct. The instant case involves a challenge to the JCC's application of the 120 day rule to the facts she found. Against this backdrop, Appellant provides the following Statement of Facts with the record citations supporting the JCC's findings to show that CSE supported the JCC's findings and to show the legal errors she committed with reference to the application of the 120 day rule.

STATEMENT OF FACTS

Tara Walker began working for the Employer herein on October 3, 2021 as a bus driver. (R. 442) On January 22, 2024, Claimant drove over a hump, when she felt a sharp pain in her back, neck, and legs. (R. 17, 448) She reported the accident to bus traffic control ("BTC") and completed an investigation report which she provided to her supervisor within 24 hours. (R. 17, 448) Per the Pretrial Stipulation, the Employer accepted the accident and the injuries of "lumbar and cervical sprain/strains" as compensable. (R. 16, 78)

On January 31, 2024, Claimant sought medical care on her own, through her health insurance, with Dr. Eduardo Icaza for complaints

of neck and back pain. (R. 17; RT. 68) She received follow-up medical care with Dr. Icaza in March and July 2024. (R. 17; RT. 69) On April 1, 2024, Claimant's supervisor finally completed the investigation report, and after a five month delay, the E/C authorized Physician's Health Center (PHC) for medical care. (R. 17) After receiving conservative care at PHC, Claimant was referred to an orthopedic surgeon for her neck and back complaints. E/C authorized Dr. Amar Rajadhyaksha ("Dr. Amar"), who prescribed physical therapy, medications, and reviewed the lumbar and cervical MRIs. (R. 17; RT. 38-40)

On October 16, 2024, Dr. Amar referred Claimant to a pain management physician for "evaluation of cervical epidural steroid injections."[1] (R. 17, 781; RT. 40) The injuries he diagnosed included "cervical disc degeneration" and sprain of ligaments of cervical spine. (R. 781) In response, the E/C authorized Dr. McCarthy, a pain management physician. He provided Claimant with three epidural

[1]Months later, in his deposition of September 17, 2025, he explained that the referral was due to an "exacerbation of her degenerative changes that may have been causing her neck pain." (R. 17, 632; RT. 40)

steroid injections (ESIs) to the neck as he was directed to do by Dr. AMar. (R. 17, 531-536, 781; RT. 40) Claimant's neck pain improved after the ESIs. (RT. 40) During her treatment with Dr. McCarthy, Claimant testified that E/C never informed her that any of the treatment was denied. (R. 17; RT. 44-45) She testified that all the treatment recommended by the authorized doctors was provided and authorized by E/C. (R. 17; RT. 44-45) Dr. McCarthy informed Claimant that she needed to wait at the minimum six months before considering another series of ESIs. (R. 17; 553; RT. 47) After undergoing the three ESIs, Claimant returned to Dr. Amar, who found Claimant reached MMI. He prescribed medications, which the E/C authorized and released Claimant to full-duty work and indicated no further treatment was necessary. (R. 17, 636-637, 639; RT. 42) Claimant testified she did not feel ready to return to full-duty work and requested a one-time change in physician. (R. 17, RT. 41, 64)

TREATMENT RELATED TO 120 DAY RULE

Pursuant to the referral from Dr. Amar, the County authorized Dr. Liam McCarthy MD, to evaluate and treat Ms. Walker for her work-related accident and resultant injuries. (R. 17, 79) Dr. McCarthy

first evaluated Ms. Walker on October 30, 2024[2]. (R. 17, 19, 526, 583-584; RT. 44) Pursuant to his physical examination and diagnostic test findings (and as the JCC found), he diagnosed Ms. Walker with "cervical disc disorder with radiculopathy," which encompasses "a mixture of bulging and herniated discs."[3] (R. 19, 530) To treat the injury of cervical disc disorder with radiculopathy, he recommended a C7-T1 cervical interlaminar epidural steroid injection to treat the herniated and bulging discs and radiculopathy. (R. 19, 531-532) He testified that these injections were medically reasonable and necessary and that the work injury was the MCC of the need for this care. (R. 538-539) On November 12, 2024, the procedure was authorized by the County and Dr. McCarthy performed the first C7-T1 epidural injection, noting a diagnosis of cervical disc displacement with cervical radiculopathy. (R. 531) On November 27, 2024, Ms.

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[2]Claimant will argue that, at the very latest, this is the first date the E/C provided treatment for the injury of cervical disc disorder with radiculopathy under the 120 day rule.

[3]Dr. McCarthy also diagnosed and treated a lumbar injury on various occasions. However, because the lumbar spine is not part of the instant appeal, Appellant will omit those references.

Walker returned to Dr. McCarthy and he reiterated the diagnosis (cervical disc disorder with radiculopathy) and recommended a second ESI at C7-T1. (R. 533-534, 595-596) On December 17, 2024, Dr. McCarthy administered the second ESI (which was authorized by the County) and rendered the same diagnosis- "cervical disc displacement with radiculopathy." (R. 534-535, 601)

Ms. Walker returned to Dr. McCarthy on January 17, 2025 and he ordered a third epidural injection pursuant to the same diagnosis. (R. 19, 535, 604-605) The injection was authorized by the County and performed on February 11, 2025, (for the same diagnosis of "cervical disc displacement with radiculopathy.") (R. 537-538) On February 26, 2025, Dr. McCarthy again diagnosed Ms. Walker with "cervical disc disorder with radiculopathy." (R. 538, 611-612) At his deposition, he affirmed that the letter he signed on October 22, 2025 reflected his correct opinions. Therein, he diagnosed Claimant with cervical disc disorder with radiculopathy and stated that the epidural injections treated and provided lasting improvement to the compressed herniated disc in the cervical spine, and she will need therapy palliative injections and medications in the future. (R. 539-540, 616)

Dr. McCarthy testified that the ESI injections treated the disc pathology and the nerve root area; whereas a trigger point injection treats a muscle strain (which the E/C alleged was the compensable injury). (R. 526-528)

TESTIMONY OF THE ADJUSTERS ON THE 120 DAY RULE:

Ms. Doris Alexander was the initial adjuster assigned to this case. (R. 20) She accepted the claim under the 120-day rule on July 19, 2024 and the compensable body parts were a lumbar and cervical sprain. (R. 243, 249, 288, 294). She then filed a Notice of Denial on July 24, 2024, which stated that the denied conditions were "the strengthening of the cervical lordosis and a multilevel diffuse disc bulges and posterior disc protrusion with central canal and neural foraminal narrowing from C3-4 through C7-T1." (R. 20, 244, 321) The Notice further explained that, "per the medical opinion of the authorized treating physicians (sic), Dr. Amar, the conditions listed above are personal/preexisting and are not related to the work accident dated 1/22/2024." (R. 20, 321) This was the only Notice of Denial filed in this case. (R. 133)

Despite what the denial said, Ms. Alexander admitted that the E/C did not actually deny the injuries of "cervical disc disorder," "cervical radiculopathy, or cervical herniated disc." (R. 20, 268) Rather, the adjuster agreed that the body parts that she denied (in July of 2024) were treated by the E/C from October 2024 through February 2025 with Dr. McCarthy. (R. 20, 286) Also, she never advised Dr. McCarthy or Dr. Amar of her denial, and she did not limit their care. (R. 268-269) The adjuster also admitted the following relevant points as to the 120 day rule:

1. That Dr. McCarthy was authorized,
2. That he diagnosed "cervical disc disorder with radiculopathy," (R. 20)
3. That she never advised Dr. McCarthy that he was not authorized to treat those injuries,
4. That Dr. McCarthy was authorized to perform three epidural steroid injections in November 2014, December 2024 and February 2025 to treat the injury of "cervical disc displacement and cervical radiculopathy."
5. The adjuster never denied any treatment provided by Dr. McCarthy. (R. 20)

(R. 20, 273-275, 277-278)

Mr. Rubio became the new adjuster, and he began handling this case on behalf of the County after the PFB was filed in April of 2025.

(R. 132-133) He testified that the E/C did not advise Dr. McCarthy that he was not authorized to treat the cervical disc disorder with radiculopathy, and he agreed that the E/C never denied those conditions. (R. 131-132) He confirmed that all of the care provided by Dr. McCarthy was authorized and paid for by the E/C. (R. 144)

PFB, RESPONSE, DISCOVERY AND PRETRIAL STIPULATION

Claimant filed a PFB on August 13, 2025, which sought, *inter alia*, "authorization and provision of medical treatment for cervical disc disorder with radiculopathy, cervical herniated disc...". (R. 15, 96-98) The E/C's response dated August 27, 2025[4] indicated that:

> Authorization for the cervical disc disorder with radiculopathy, cervical herniated disc, lumbar disc disorder with radiculopathy, lumbar herniated discs, and spondylolisthesis are denied as they are preexisting and personal. The E/C/SI authorized treatment for a lumbar & cervical strain only. The major contributing cause for the ongoing need for treatment is the personal and preexisting conditions.

(R. 15, 96-98)

The parties filed their Uniform Statewide Pretrial Stipulation on November 12, 2025. (R. 78-84) Therein, Claimant asserted that the E/C is barred from asserting MCC defense "pursuant to the 120 day rule F.S. 440.20(4)," and "estoppel and waiver, including but not limited to F.S. 440.192(8)." (R. 16, 82) These same arguments were presented at length in Claimant's Pretrial Memo of Law. (R. 1087-

[4]Claimant will argue that the denial of August 27, 2025 was the first date that the E/C denied treatment for the injury of cervical disc disorder with radiculopathy, and that this was more than 120 days after the initial provision of benefits for that injury.

1113) The E/C defended the claims by asserting, *inter alia*, that "Claimant has undergone authorized treatment for her compensable cervical and lumbar sprains/strains, and there is no CSE that the claimed conditions arose out of the course and scope of employment," and that the "MCC for treatment, if any, is due to Claimant's preexisting medical conditions as diagnosed with MRI. The MCC for the ongoing need for treatment are degenerative and preexisting conditions." (R. 16, 81) The E/C did not plead a response to Claimant's 120 day rule avoidance. (R. 16, 79-82)

FINAL HEARING AND FINAL ORDER

The case proceeded to Final Hearing on June 8, 2026 on the PFB dated August 13, 2025. (R. 57) The JCC rendered her first Final Order on June 22, 2026 ("Order 1") and granted the claim "for authorization and provision of medical treatment for cervical disc disorder with radiculopathy." (R. 54-68) To reach that finding, she factually concluded that upon Dr. McCarthy diagnosing Claimant with cervical disc disorder with radiculopathy, "it was incumbent on E/C to either issue a 120-day letter and deny or deny it within 120 days of provision of the treatment," and she found that the benefits were first provided

on October 30, 2024. (R. 63, 65) The JCC also found that Claimant was never placed on notice by E/C or by Dr. McCarthy that any of the care or injuries for which she received treatment from him were denied. (R. 63) The JCC found that the "identity of the injury for which benefits were provided by E/C is cervical disc disorder with radiculopathy. Dr. McCarthy testified the ESI's were provided to treat Claimant's cervical disc disorder." (R. 65) Thus, the JCC concluded that "E/C had until 2/27/2025 to deny compensability of the cervical disc disorder with radiculopathy," and that the "E/C first denied the cervical disc disorder with radiculopathy on 8/27/2025, 302 days after the treatment was provided to Claimant." (R. 65) Thus, the "E/C waived the right to deny compensability of Claimant's cervical disc disorder with radiculopathy as they failed to deny compensability of it within 120 days after the initial provision of benefits." (R. 65-66) Appellant agrees that these fact findings were correct and supported by CSE.

Claimant filed a Motion for Reconsideration and/or Rehearing filed on July 1, 2026 for the limited reason to point out that the JCC overlooked that Dr. McCarthy's diagnosis of cervical disc disorder

covered both the cervical herniated discs and bulging discs, and that Dr. McCarthy performed injections to treat the herniated and bulging discs and radiculopathy. (R. 72-73) Therefore, Claimant's cervical herniated discs were also a compensable injury (as well as the cervical disc disorder). (R. 72) The JCC vacated her order. (R. 55)

The JCC rendered her second Final Order ("Order 2") on July 9, 2026, and based on largely the same fact findings, she denied the very same claim that she granted- "for authorization and provision of medical treatment for cervical disc disorder with radiculopathy." (R. 28-40) In Order 2, the JCC found the E/C did not waive the right to compensability of a condition under Section 440.20(4). As to the "Identity of the Injuries," the JCC factually concluded that:

> E/C authorized Dr. McCarthy for pain management. At the time of the referral, Dr. McCarthy was unaware whether Claimant had a work-related exacerbation or underlying disc disease. He diagnosed cervical disc displacement and disorder with radiculopathy and treated it with ESIs from 10/30/2024 to 2/11/2025.

(R. 36)

Despite the JCC's fact finding that Dr. McCarthy diagnosed and treated the injury of cervical disc displacement and disorder with

radiculopathy, the JCC concluded that: "I find the 'identity' of the injuries for which benefits were provided by E/C are cervical sprain and an exacerbation of Claimant's cervical degenerative changes." (R. 36) She accepted "the testimony of Rajadhyaksha over the testimony of Dr. McCarthy for three reasons." (R. 23) In spite of that finding, the JCC also factually concluded:

> 37. I find Dr. McCarthy's **testimony and records reveal he diagnosed and treated Claimant's cervical disc displacement, including the bulging herniated disc**. Even so, I find this treatment does not contradict Dr. Rajadhyaksha's testimony that pain management care was ordered and provided for an exacerbation of Claimant's degenerative changes (cervical disc displacement including the bulging herniated discs). I find Dr. Rajadhyaksha's testimony supports that it would be medically impossible to treat the exacerbation to the underlying degenerative disease without also temporarily treating the underlying disease with the use of epidural injections. I accept Dr. Rajadhyaksha's testimony that Claimant suffered a work-related exacerbation of her degenerative conditions which resolved as of 3/12/2025.

(R. 37) (emphasis added)

In spite of the above her finding that "Dr. McCarthy's testimony and records reveal he diagnosed and treated Claimant's cervical disc displacement," the JCC concluded that the only treatment the E/C authorized and provided was "treatment for Claimant's exacerbation

of degenerative changes. E/C authorized medical treatment with Dr. Rajadhyaksha and Dr. McCarthy for the cervical sprain and exacerbation, until Claimant's exacerbation resolved." (R. 37) Thus, the JCC reached the opposite conclusion in Order 2 and found that: "E/C did not waive their right to contest the compensability of the claimed cervical and lumbar conditions under Sections 440.192(8) and 440.20(4)." (R. 37) Based on this, the JCC did not address if there was an intervening accident. (R. 38)

Claimant filed a second Motion for Reconsideration/ Rehearing on July 20, 2026. (R. 41-46) Claimant argued that based on the JCC's fact finding that the E/C authorized Dr. McCarthy to evaluate and treat the injury (aka "diagnosis") of cervical disc disorder with radiculopathy, the JCC misapplied the 120 day rule. (R. 41-42) Claimant asserted that the E/C authorized and paid for the care recommended and provided by Dr. McCarthy (3 ESI injections) to treat the cervical disc disorder with radiculopathy. As such, this injury is compensable by operation of law, and no MCC analysis was necessary. (R. 42) Instead, Claimant argued that the E/C must "demonstrate a break in the causation chain, such as the occurrence

of a new accident or that the requested treatment was due to a condition unrelated to the injury." (R. 42) The JCC denied Claimant's Motion. (R. 53) This timely appeal follows.

SUMMARY OF ARGUMENT

The 120-day waiver provision applies compensability of injuries. The E/C had the right to deny Claimant's injury of cervical disc disorder with radiculopathy based on the invocation of 120 day provision found in §440.20(4). However, the E/C failed to properly exercise that right. Instead, the E/C treated the injury of cervical disc disorder with radiculopathy without reservation or denial starting on October 30, 2024 until the denial dated August 27, 2025, "302 days after the treatment was provided to Claimant." (R. 65) Thus, as the JCC correctly found in Order 1, the "E/C waived the right to deny compensability of Claimant's cervical disc disorder with radiculopathy as they failed to deny compensability of it within 120 days after the initial provision of benefits." (R. 65-66)

The Legislature has mandated that "a carrier that fails to deny compensability within 120 days after the initial provision of benefits… waives the right to deny compensability." Thus, because the E/C elected to pay the injury, failed to properly invoke the "pay and investigate within 120 days," and failed to deny the injury within 120 days, the E/C accepted the injury of cervical disc disorder with

radiculopathy. See *Sierra v. Metro. Protective Servs. & Guar. Ins.*, 188 So. 3d 863 (Fla. 1st DCA 2015).

The JCC's stated reasons for rejecting the 120 day rule were irrelevant, erroneous, and irrational. None of her considerations were part of the 120 day test. Further, her order was internally inconsistent. The JCC found on two occasions that Dr. McCarthy diagnosed "cervical disc displacement and disorder with radiculopathy and treated it with ESIs from 10/30/2024 to 2/11/2025." (R. 23) That finding is supported by CSE. By any measure of math, the E/C's denial on August 27, 2025 (and even using an earlier constructive denial date of April 22, 2025 as the date after which no further treatment was provided) did not deny the injury within 120 days as mandated under *Sierra*. The JCC got the math right in Order 1. She got the law wrong in Order 2. This Court should set aside that order and remand with instructions to find Claimant's injury of "cervical disc displacement and disorder with radiculopathy" as compensable under the 120 day rule.

ARGUMENT:

I. THE JCC ERRED IN HER APPLICATION OF 120 DAY RULE AND ERRED BY FAILING TO ESTOP THE E/C FROM DENYING THE CERVICAL DISC DISORDER INJURY.

A. Standard of Review:

As to the standard of review of whether the JCC erred applying the 120 day rule involves an interpretation of law, and this Court should apply the de novo standard of review. *See Churchill v. DBI Servs., LLC,* 361 So. 3d 896, 904 (Fla. 1st DCA 2023)("we apply a de novo standard of review to this issue which concerns a JCC's application of law" regarding the 120 day rule.)

B. Argument:

The resolution of the issue on appeal begins with the analysis of the plain text of the statute. See *Estes v. Palm Beach Co. School Dist.*, 433 So.3d 849 (Fla 1st DCA 2026)(en banc)"(Our duty, however, is to faithfully apply the plain and ordinary meaning of the enacted text.") Section 440.20(4), Fla. Stat. (2024), the provision at issue in the instant case, provides that**:**

> (4) If the carrier is uncertain of its obligation to provide all benefits or compensation, the carrier shall immediately

> and in good faith commence investigation of the employee's entitlement to benefits under this chapter and shall admit or deny compensability within 120 days after the initial provision of compensation or benefits as required under subsection (2) or s. 440.192(8). Additionally, the carrier shall initiate payment and continue the provision of all benefits and compensation as if the claim had been accepted as compensable, without prejudice and without admitting liability. Upon commencement of payment as required under subsection (2) or s. 440.192(8), the carrier shall provide written notice to the employee that it has elected to pay the claim pending further investigation, and that it will advise the employee of claim acceptance or denial within 120 days. **A carrier that fails to deny compensability within 120 days after the initial provision of benefits or payment of compensation as required under subsection (2) or s. 440.192(8) waives the right to deny compensability**, unless the carrier can establish material facts relevant to the issue of compensability that it could not have discovered through reasonable investigation within the 120-day period. The initial provision of compensation or benefits, for purposes of this subsection, means the first installment of compensation or benefits to be paid by the carrier under subsection (2) or pursuant to a petition for benefits under s. 440.192(8).

(Emphasis added)

It is well established that the polestar of statutory interpretation is legislative intent, which is to first be determined by first looking at the actual language used in the statute. *Searcy, Denney, Scarola, Barnhart & Shipley v. State*, 209 So.3d 1181, 1189 (Fla. 2017); *Holly v. Auld,* 450 So.2d 217, 219 (FLA. 1984); *See also*, *Wilcox v. Neville*,

283, So.3d 878 (FLA. 1st DCA 2019). "The plain meaning of statute is always the starting point in statutory interpretation." *GTC Inc., etc., v. Edgar etc., et al.,* 967 So.2d 781 (FLA 2007). Additionally, if the statute's language is clear and unambiguous, the Court must not delve further into any interpretation of the statute thereof and must give the statute it's plain and obvious meaning. *Wilcox v. Neville.*, at 880. The Court also must give effect to **all** parts of the statute and avoid readings that would render a part thereof meaningless. *Id.*

In this instant case, §440.20(4), Fla. Stat., contains a clear and express directive that "a carrier that fails to deny compensability within 120 days after the initial provision of benefits… waives the right to deny compensability." Section 440.192(8), Fla. Stat. (2021), further provides that a carrier that does not deny compensability **"in accordance with s. 440.20(4) is deemed to have accepted the employee's injuries as compensable.**" This plain language leads to but one inescapable conclusion, that in order to deny compensability of an injury, the E/C must do so "in accordance with s. 440.20(4)," which requires that it be done within 120 days of the initial provision of benefits for that injury.

The 120 day rule has become as well established in Florida jurisprudence, as it is clear in its meaning and application.[5] *Engler v. American Friends of Hebrew University*, 18 So. 3d 613 (Fla. 1st DCA 2009) was decided 18 years ago and is the first case addressing this issue. There, the claimant was in a work-related motor vehicle accident which caused injuries to her cervical and thoracic spine, knees, and ankles, and either caused or aggravated her migraine headaches. The JCC denied treatment for the same injuries she previously had found to be compensable, finding the compensable accident was no longer the MCC of Claimant's need for treatment. This Court reversed and stated that, "once compensability is established, an E/C can no longer contest that the accident is the MCC of the injuries at issue. It can only contest the connection

[5]Appellant understands that this Court is no stranger to the requirements and effect of the 120 day rule. In *Koren v. City of Kissimmee*, No. 1D2023-2428 (Fla 1st DCA June 10, 2026)(M.K. THOMAS, J., specially concurring), this Court provided what can be fairly regarded as a comprehensive treatise on the 120 day rule and its application. However, inasmuch as Appellant understands that the Court may not presently have the assistance of a workers' compensation staff attorney in deciding this matter, Appellant's counsel will provide a detailed discussion and historical perspective as to the this Court's decisions on the 120 day rule.

between a claimant's need for specific treatment or benefits, and the industrial accident." *Id.* at 614.

The 120 day issue was next addressed in *Jackson v. Merit Elec.*, 37 So. 3d 381 (Fla. 1st DCA 2010). There, the JCC signed an order approving the stipulations of the parties which in relevant part stated "[t]he [E/C] has agreed to accept compensability of the back and to provide treatment for the back with Dr. Chandler." Based on the stipulation, this Court found that claimant met his initial burden of proof to establish entitlement to the requested treatment. This Court held that the burden then shifted to the E/C to provide medical evidence that the causal connection between the compensable back injury and the requested treatment was broken, such as the occurrence of a new accident or that the requested treatment was due to a condition unrelated to the injury which the E/C had accepted as compensable. *Id.* at 383.

The next major decision addressing the 120 day rule was *Cespedes v. Yellow Transportation, Inc.*, 130 So. 3d 243 (Fla. 1st DCA 2013). There, this Court stated again that "once compensability of an injury is established, a carrier can no longer contest that the accident

is the MCC of the injury." Thus, in a situation where the E/C has stipulated that Claimant's injury was a compensable (an L5/S1 disc herniation) and provided compensable treatment for this condition for more than 120 days, to avoid responsibility for treatment of this compensable injury, the E/C must demonstrate a break in the causation chain between the accident and this injury, and must prove that the surgery was to treat a medical condition unrelated to the compensable injury. *Id*.

In interpreting this provision, this Court has declared (correctly and repeatedly) that the 120-day pay-and-investigate applies not only to accidents, it also applies to injuries (such as the cervical disc disorder and radiculopathy injury in the instant case). See *McIntosh v. CVS Pharmacy*, 135 So. 3d 1157, 1159 (Fla. 1st DCA 2014) (explaining that 120-day pay-and-investigate period relates to compensability—whether of the initial accident or to a "specific injury or condition"); *Bynum Transp., Inc.*, 765 So. 2d at 754 (holding section 440.20(4) applies to any claim for compensability of any injury made following date of accident, not just the first claim).

Sierra v. Metropolitan Protective Services/ Guarantee Insurance,

188 So. 3d 863 (Fla. 1st DCA 2015) is the next prominent decision published by this Court on this issue. Appellant asserts that the JCC erred in her application of this case. In *Sierra*, this Court provided guidance of what is to be proven to invoke the 120 day rule. This court noted a correct analysis of the issue requires the following findings:

> (1) the first date the E/C provided benefits,
> (2) the identity of the "specific injury" for which benefits were provided, and
> (3) whether the denial of the injury occurred within the applicable 120 day period.

Sierra, at 867.

Reversing the JCC's denial of care for PTSD which was the injury at issue in that case, this Court directed the JCC on remand to consider the above factors. If the compensable psychiatric injury is the MCC for the need for the requested treatment, then the JCC must consider whether the E/C, in seeking to deny further treatment, has shown a "break" in the causation chain so that the compensable psychiatric injury, if any, is "no longer" the MCC of the need for the requested treatment. *Id*.

Further, this Court in *Sierra* court defined what is necessary to

demonstrate a “break,” stating that: “because the terms "break" and "no longer" indicate a change in status, a "break" in the causation chain cannot be proven with evidence that the (allegedly) accepted compensable injury never met the MCC standard in the first instance. *Id*. In other words, where the waiver of the right to deny compensability of an identified injury has occurred under subsection 440.20(4), a later finding that the compensable injury was not caused in major part by the workplace accident in the first instance, will not satisfy the necessary proof that the compensable injury "no longer" remains the major contributing cause of the need for treatment— “as such a finding would be, in actuality, a belated way of saying ‘the compensable injury was never compensable,’ which (assuming the 120-day rule results in waiver) is prohibited under section 440.20(4).” *Sierra*, at 863.

Applying Sierra to the undisputed facts in the instant case, on October 30, 2024, the E/C authorized Dr. McCarthy to evaluate the cervical complaints and that he identified the injury (the “diagnosis”) as cervical disc disorder with radiculopathy. (R. 20, 273-275, 277-278) This is the first date the E/C provided benefits. *Sierra*, at 867.

As to the second point, there is likewise no fact dispute that the identity of the "specific injury" included Claimant's cervical disc disorder with radiculopathy. (R. 20, 273-275, 277-278) The treatment provided was three epidural steroid injections, which the E/C authorized and provided. (R. 20, 273-275, 277-278). *Sierra*, at 867.

As to the third prong, the E/C certainly had the right to deny the injury of cervical disc disorder following the proper invocation of 120 day provision found in §440.20(4). However, despite their previous Notice of Denial, the evidence is unrefuted that the E/C treated that very injury from October 30, 2024 (when Dr. McCarthy first evaluated Ms. Walker) to August 27, 2025, when the E/C filed the response to the PFB and denied that injury. (R. 15, 17, 19, 96-98, 526; RT. 44) Thus, the denial of the injury did not occur within the applicable 120 day period. *Sierra*, at 867. This was exactly what the JCC found in Order 1, where she concluded that the benefits were first provided on October 30, 2024 to treat Claimant's cervical disc disorder, and that the "E/C had until 2/27/2025 to deny compensability of the cervical disc disorder with radiculopathy," and that the "E/C first denied the cervical disc disorder with radiculopathy on 8/27/2025, 302 days

after the treatment was provided to Claimant." (R. 63- 65) In Order 2, the JCC doubled down on the finding that: "I find Dr. McCarthy's testimony and records reveal he diagnosed and treated Claimant's cervical disc displacement…". (R. 37) Appellant agrees that these fact findings were correct and supported by CSE.

All of the foregoing legal discussion brings us to the legal error complained of herein, which is the JCC's reasoning that just because she accepted "the testimony of Rajadhyaksha over the testimony of Dr. McCarthy for three reasons" as it pertains to MCC, that the requirements of the 120 day rule were no longer met. (R. 23) However, just because the JCC found that the "identity" of the injuries for which the E/C provided benefits were a cervical sprain and an exacerbation of Claimant's cervical degenerative changes does not mean that the E/C did not also treat other injuries of "cervical disc displacement and disorder with radiculopathy."

This Court's decision in *Sullivan v. NUC02, LLC/Broadspire*, 308 So. 3d 659, 662 (Fla. 1st DCA 2020) is instructive as to the JCC's errors in the instant case. In *Sullivan*, the claimant argued that the

E/C accepted, “not just the aggravation, but also the preexisting (shoulder) condition as compensable, by providing related benefits and failing to deny compensability of the same before the end of the 120-day period.” *Id.*, at 662. The JCC accepted the E/C's defense that the workplace injury was limited to an aggravation of a preexisting condition and was no longer the MCC of the need for benefits. The JCC also found that the E/C was on notice that Dr. Leung was providing treatment for an aggravation of the preexisting condition "no later than the receipt of the September 26, 2016 MRI," and yet continued to treat this condition until October 2018. In spite of those findings, the JCC concluded the 120-day rule did not apply. *Id.*

In reversing the JCC, this Court found that CSE does not support some of these factual findings, and the case law does not support the JCC's conclusions. *Id.* First, this Court found that the only evidence that the E/C limited their acceptance to an aggravation of a preexisting condition (and not the entire right shoulder condition to include both the aggravation and the preexisting condition) was their deauthorization of Dr. Steen in April 2018 and their assertion in the September 27, 2018, pretrial stipulation, both of which occurred

more than 120 days after the E/C initially provided benefits for the preexisting condition as aggravated by the workplace accident. The same is true in the instant case. Although the E/C filed a Notice of Denial, the E/C here authorized treatment for Claimant's cervical disc disorder and radiculopathy with Dr. McCarthy for more than 120 days. That injury was first denied by way of PFB response dated August 27, 2025, which was more than 120 days after the initial provision of benefits. Thus, just as this Court determined in *Sullivan* that "the E/C cannot deny compensability of the preexisting condition" after the expiration of 120 days, it should reach the same conclusion in the instant case.

Second, in *Sullivan*, this Court found it relevant that the record contained no evidence the E/C ever "directed any provider to treat a work-related aggravation only or otherwise limited their authorization of treatment of the right shoulder." *Id.*, at 663. Again, the same is true in the instant case. Despite the Notice of Denial from July of 2024 sent to Claimant, the adjuster (Ms. Alexander) admitted that the body parts in that denial were treated by the E/C from October 2024 through February 2025 by Dr. McCarthy. (R. 20, 286) Also, she never

advised Dr. McCarthy or Dr. Amar of her denial, and she did not limit their care. (R. 268-269) In sum, the E/C gave Dr. McCarthy *carte blanche* to treat the entirety of Claimant's cervical spine, and he did so. The E/C never denied any of his treatment as the JCC found. (R. 20)

Third, in *Sullivan*, finding that the carrier had "sufficient information to enable it to deny compensability within 120 days," this Court observed that the "E/C were on notice of the preexisting condition by virtue of the diagnostic test results." *Id.*, at 663. The E/C in the instant case was similarly aware and knew the difference between a cervical sprain and disc disorder and herniated discs. This is evidenced by the E/C's Notice of Denial on July 24, 2024, which stated that the denied conditions included "... a multilevel diffuse disc bulges and posterior disc protrusion with central canal and neural foraminal narrowing from C3-4 through C7-T1." (R. 20, 244, 321) Thus, when Dr. McCarthy diagnosed cervical disc disorder, the E/C here had "sufficient information to enable it to deny compensability within 120 days." *Id.* However, after receiving that, the E/C continued to authorize care. *Sullivan* mandates a reversal.

In the instant case, the JCC twice factually found the E/C treated the "specific injury" of "cervical disc displacement and disorder with radiculopathy." (R. 19, 23, 37) In spite of that, the JCC rejected Dr. McCarthy's testimony and found that the injury was limited to a "cervical sprain and an exacerbation of Claimant's cervical degenerative changes." (R. 23) This finding is rendered even more dubious in light of the fact that the E/C asserted something totally different in the Pretrial Stipulation. Therein, the E/C accepted the accident and the injuries of "lumbar and cervical sprain/strains" as compensable. (R. 16, 78) So the JCC found something different than even what the E/C asserted. Regardless, the JCC offered the following reasons for rejecting Dr. McCarthy's opinions:

1. Dr. Rajadhyaksha was the physician who oversaw and coordinated Claimant's medical treatment.

2. Dr. McCarthy deferred to Dr. Rajadhyaksha regarding any opinions about MCC, MMI, and other matters.

3. Dr. Rajadhyaksha referred Claimant to Dr. McCarthy for complaints of neck pain radiating to her arm. Dr. McCarthy testified he cannot tell what objective cervical findings are preexisting or not.

(R. 23)

Appellant does not quarrel with these findings as not being supported by CSE. Rather, these reasons are illogical, irrelevant and erroneous to the proper application of the 120 day rule. They are also incompatible and irreconcilable with her other fact findings. First, the fact that “Dr. Rajadhyaksha was the physician who oversaw and coordinated Claimant's medical treatment” is not a relevant consideration for the 120 day rule and is not part of that test. (R. 23) Also, the fact that Dr. Rajadhyaksha oversaw Claimant's medical treatment does not detract from the fact that Dr. McCarthy treated her injury of cervical disc disorder. In addition, just because the E/C treated the “cervical sprain and an exacerbation of Claimant's cervical degenerative changes,” as the JCC found, does not mean that the E/C did not also treat the injury of “cervical disc displacement and disorder with radiculopathy... with ESIs from 10/30/2024 to 2/11/2025.” (R. 23) The exact findings of the JCC in Order 2 were that: “I find Dr. McCarthy’s testimony and records reveal he diagnosed and treated Claimant’s cervical disc displacement, including the bulging herniated disc.” (R. 24) The JCC’s finding that the E/C only treated "cervical sprain and an exacerbation of Claimant's cervical

degenerative changes" is not only internally inconsistent, but it is irreconcilable with the concomitant finding that he treated a cervical disc disorder.

The JCC's second reason, that Dr. McCarthy deferred to Dr. Rajadhyaksha "regarding any opinions about MCC, MMI, and other matters," also has nothing to do with the three part test for the 120 day rule. *Sierra,* at 867. MCC and MMI are not relevant to the 120 day rule. The JCC erred by applying factors to the 120 day test that are not required by law. The JCC also found that "Claimant has not satisfied her burden of proving that the MCC of the claimed cervical and lumbar conditions and need for medical treatment are the industrial injuries." (R. 25) This too was error, as in so doing, all the JCC was saying was that the compensable injury (of cervical disc disorder) was not caused in major part by the workplace accident in the first instance. See *Sierra*

The JCC's third reason was that: "Dr. McCarthy testified he cannot tell what objective cervical findings are preexisting or not." (R. 23) That may be true. But none of those fact findings take away from the incontrovertible fact that the specific identity of the injury treated

by the E/C also included a cervical disc disorder. (R. 24) Also, the fact that "Dr. McCarthy testified he cannot tell what objective cervical findings are preexisting or not" is not part of the test for the 120 day rule. See *Sierra*, at 867. If Claimant lacked objective findings, then the E/C should have denied the injury within 120 days based on that. That is the purpose of the 120 day rule- to give the E/C a lengthy 120 day runway to make these compensability determinations based on the information they receive from the authorized doctors. The E/C did not do that here. Application of the wrong legal test is reversible error. See *Caputo v. ABC Fine Wine & Spirits*, 93 So. 3d 1097 (Fla. 1st DCA 2012)("Because the JCC applied the wrong test for determining compensability, we reverse.")

Here, the E/C had three choices: 1. pay or 2. pay and invoke the 120 day pay and investigate provision, or 3. deny. Fla. Stat. §440.20(4); *Bynum Transp. Inc v Snyder*, 765 So 2d 75, 754 (Fla. 1st DCA 2000). In the instant case, the E/C authorized and paid for the care recommended and provided by Dr. McCarthy for Claimant's cervical disc disorder with radiculopathy and did so for far more than

120 days. Appellees cannot and will not dispute this fact. As such, the cervical disc disorder and radiculopathy is a compensable injury by operation of law under the 120 day rule.

Once the E/C paid for and accepted the injury of cervical disk disorder with radiculopathy, the burden shifted to the E/C to provide medical evidence that the causal connection between the compensable injury was broken. See *Engler v. Am. Friends of Hebrew Univ.*, 18 So. 3d 613, 614 (Fla. 1st DCA 2009) ("Once compensability is established, an E/C can no longer contest that the accident is the MCC of the injuries at issue. It can only contest the connection between a claimant's need for specific treatment or benefits, and the industrial accident."). Here, the E/C was required to "demonstrate a break in the causation chain, such as the occurrence of a new accident or that the requested treatment was due to a condition unrelated to the injury which the Employer/Carrier had accepted as compensable." See *Perez v. Southeastern Freight Lines*, 159 So. 3d 412 (Fla. 1st DCA 2015). The JCC failed to correctly apply that correct legal test to this case. Application of an incorrect rule of law is reversible error. See, *Houck v. Lee County Bd. of County Comm'rs*, 995 So.2d 1102, 1103 (Fla. 1st

DCA 2008) (holding reversal and remand to be appropriate where JCC applied incorrect standard to permanent total disability claim); *Canakaris v. Canakaris*, 382 So.2d 1197 (Fla.1980).

Appellant again wishes to remind this court that she accepts the findings of fact made by the JCC. The JCC's error in the instant case is the manner in which those fact findings were applied to the 120 day rule, and even more specifically, the JCC's failure to apply certain fact findings to the 120 day rule. In the instant case, all three factual elements of the as test set forth in *Sierra* have been met to trigger the application of the 120 day rule and find Claimant's injury of cervical disc disorder and radiculopathy to be compensable. First, as the JCC correctly found, the 120 days began to accrue on October 30, 2024, when Dr. McCarthy diagnosed the claimant with cervical disc disorder with radiculopathy, cervical herniated disc and provided care and treatment for that diagnosis to include three cervical epidural injections. (R. 17, 19, 36, 59, 526; RT. 44) As the JCC found, he diagnosed Ms. Walker with "cervical disc disorder with radiculopathy," which encompasses "a mixture of bulging and herniated discs." (R. 19, 530) This finding was also made by the JCC in Order 1. (R. 63)

As to the second element, in Order 1, the JCC found that the "identity of the injury for which benefits were provided by E/C is cervical disc disorder with radiculopathy." (R. 65) The only record evidence in this case was that the ESI's were provided to treat Claimant's cervical disc disorder ("primarily for herniated or bulging discs") and not a sprain, which would be a trigger point injection "directly into the muscle." (R. 526-528) Although the JCC made alternative fact findings in Order 2, she still found that: "Dr. McCarthy diagnosed Claimant with cervical disc disorder with radiculopathy…," and that "Dr. McCarthy administered three ESIs from 10/30/2024 to 2/11/2025, which improved Claimant's neck complaints by 50 to 60%." (R. 19, 23) Appellant agrees this is correct and supported by CSE. That finding, notwithstanding any other finding to the contrary (*infra*), establishes that the "specific identity" of the injury treated included the cervical disc disorder with radiculopathy. The JCC erred by limiting the identity[6] of the injury to just a cervical sprain.

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[6]It should also be noted that in Order 2, the JCC only used the term "identity of injury." (R. 22, 23) *Sierra* and related cases require more detail. They require that the JCC determine: the **"specific identity"** of the injury for which the benefits were provided. *Sierra*, at 867; *Teco Energy, Inc., v. Williams*, 234 So. 3d 816, 822 (Fla. 1st

Two things can be true at the same time. The E/C could (and did) provide treatment for a cervical sprain and an exacerbation of Claimant's cervical degenerative changes, as the JCC found. (R. 23) At the very same time, it is also true that the E/C authorized and did actually treat the injury of cervical disc disorder with radiculopathy, which is also what the JCC found. (R. 19, 23, 36) The testimony from both adjusters and the medical evidence confirms this undisputed fact. The adjuster admitted that the E/C did not actually deny the injuries of cervical disc disorder or cervical radiculopathy, or cervical herniated disc. (R. 20, 268) She also agreed that the body parts that were denied in the Notice of Denial filed in July of 2024 were treated by the E/C from October 2024 through February 2025 with Dr. McCarthy. (R. 20, 286)

The JCC concluded the very same thing in Order 1, stating that: "I find the 'identity' of the injury for which benefits were provided by E/C is cervical disc disorder with radiculopathy." (R. 65) She found

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DCA 2017)(same)(emphasis added). As this Court has recognized, "Words matter and words have definitions." *Huggins v. Siegel*, 336 So. 3d 58, 60 (Fla. 1st DCA 2021) The JCC's omission is significant and is further evidence her applying the incorrect legal test.

the same thing in Order 2, stating that: Dr. McCarthy diagnosed "cervical disc displacement and disorder with radiculopathy and treated it with ESIs from 10/30/2024 to 2/11/2025." (R. 23) The Order under review also concluded: "I find Dr. McCarthy's testimony and records reveal he diagnosed and treated Claimant's cervical disc displacement, including the bulging herniated disc." (R. 24) The JCC's finding that Dr. McCarthy diagnosed and treated Claimant's cervical disc displacement with three ESI injection is supported by CSE and should be accepted by this Court. See *Gulf Mgmt., Inc. v. Wall*, 375 So. 3d 296, 299-300 (Fla. 1st DCA 2023)(that the findings of fact made by a JCC will not be disturbed on appeal if such findings are sustained by substantial evidence.); *Cobb v. Teco Energy Inc.*, 423 So. 3d 63 (Fla. 1st DCA 2025)("Where CSE supports a JCC's finding of fact, the finding must be left undisturbed, even if the record evidence could also be interpreted in support of the other side's arguments, and even if the reviewing court might have reached a different factual conclusion if it was the factfinder.") The import of that finding is that Clamant satisfied the second prong of *Sierra* that **specific** identity of the injury for which benefits were provided by E/C included cervical

disc disorder with radiculopathy. (R. 23, 65)

As to the third element (whether the denial of the injury occurred within the applicable 120 day period), the math is simple. In Order 1, the JCC concluded that: "Thus, I find E/C had until 2/27/2025 to deny compensability of the cervical disc disorder with radiculopathy. E/C first denied the cervical disc disorder with radiculopathy on 8/27/2025, 302 days after the treatment was provided to Claimant." (R. 65) This is supported by CSE. In Order 2, the JCC found that: "There is no evidence E/C provided Claimant with medical treatment for her cervical spine following the 4/22/2025 evaluation." (R. 24, 37) The JCC also found that Dr. McCarthy "diagnosed and treated Claimant's cervical disc displacement, including the bulging herniated disc" with ESIs from 10/30/2024 to 2/11/2025. (R. 23-24, 36) These findings are supported by CSE and accepted as correct by Appellant. Also, it is factually undisputed that the E/C first denial of the cervical disc disorder injury occurred on August 27, 2025. (R. 65, 99, 198) Thus, by any measure of math, the E/C's denial on August 27, 2025 (and even using an earlier constructive denial date of April 22, 2025 as the date after which no further treatment was provided), the E/C

did not deny the injury within 120 days as mandated under *Sierra*. The JCC got the law and the math right in Order 1. She got the law wrong in Order 2. This Court should set the JCC's erroneous order aside.

CONCLUSION:

The JCC erred by denying compensability of the injury of cervical disc disorder and radiculopathy and erred in her application of the facts she found to the 120 day rule. Therefore, this Court should reverse/set aside the Final Order and the case should be remanded with directions to find Claimant's injury of "cervical disc displacement and disorder with radiculopathy" as compensable under the 120 day rule.

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that the foregoing brief is a computer generated brief in Bookman Old 14-point format and complies with the 13,000 word count and font requirements of Fla. R. App. P. 9.210(a)(2).

CERTIFICATE OF SERVICE AND FILING

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished by electronic mail this 16th day of October, 2026 to Lynda S. Slade, Esquire, Attorney for Appellee, at her designated e-mail addresses of: lslade@miamidade.gov; dianab@miamidade.gov.

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